

25CMCV01780 25CMCV01780

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-05

Motion: DEFENDANTS REDON HERB DRAPER AND FRANCIS DRAPER'S: (1) DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT; AND (2) MOTION TO STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT DATE: August 5, 2026 TIME: 8:30 A.M.

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Case Number: 25CMCV01780 Hearing Date: August 5, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

ROBERT

SMOOTS, Trustee of the Lenora B. Gibson Living Trust, dated March 7, 2002,

Plaintiff,

vs.

REDON HERB DRAPER, an
individual; FRANCES DRAPER, an individual; and DOES 1-100, inclusive,

Defendants.

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CASE

NO: 25CMCV01780

[TENTATIVE] ORDER RE: DEFENDANTS REDON HERB

DRAPER AND FRANCIS DRAPER'S: (1) DEMURRER TO PLAINTIFF'S FIRST AMENDED
COMPLAINT; AND (2) MOTION TO STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT

DATE: August 5, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Parties: Defendants

Redon Herb Draper and Frances Draper

Responding Party: Plaintiff

Robert Smoots, Trustee of the

Lenora B. Gibson Living Trust, dated March 7, 2002

Notice: Ok

Tentative Ruling: (1)

Defendants' Demurrer is SUSTAINED IN PART and OVERRULED IN PART.

(2)

Defendants' Motion to Strike is DENIED.

I.

BACKGROUND

This is an

action for declaratory relief, quiet title and cancellation of instrument. Plaintiff Robert Smoots, Trustee of the Lenora B. Gibson Living Trust dated March 7, 2002 (the "Trust") alleges that he is Co-Trustee of the Trust which owns the real property located at 602 W.

Tichenor Street, Compton, CA 90220 (the "Subject Property") and which was created by the other Co-Trustee Lenora Gibson ("Gibson"). Plaintiff alleges that Defendants Redon Herb Draper and Frances Draper (collectively, the "Defendants") are acquaintances of Gibson, who is 94 years of age, currently exhibits bouts of dementia, and is unable to control her finances.

Plaintiff alleges that, at some point in August of 2023, Defendants manipulated Gibson into executing a Grant Deed which they had prepared and which effectively transferred a portion of the Subject Property to them. Plaintiff seeks a return of the Subject Property to the Trust.

On January 29, 2026, Plaintiff filed his operative First Amended Complaint (the "FAC") against Defendants and Does 1-100, inclusive, alleging causes of action for: (1) Declaratory Relief; (2) Quiet Title; and (3) Cancellation of Instrument.

On April 21, 2026, Defendants filed the instant Demurrer along with a Motion to Strike.

On June 16, 2026, Plaintiff filed his Oppositions.

On June

23, 2026, Defendants filed their Replies.

II.

ANALYSIS

A.

Legal

Standard

1.

Demurrer

A party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc. § 430.10(e).) A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

A party may also demur to a complaint on the grounds that it “is uncertain. As used in this subdivision, ‘uncertain’ includes ambiguous and unintelligible.” However, “[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. [Citation.]” (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (*Hahn, supra*, 147 Cal.App.4th at p. 747.)² On demurrer, a court does “not accept contentions, deductions or conclusions of fact or law.” (*Simonyan v. Nationwide Insurance Company of America* (2022) 78 Cal.App.5th 889, 895.)³

Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (*Rakestraw v. California Physicians' Serv.* (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy*

(1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

2.

Motion to

Strike

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of the pleading. (Code Civ. Proc. § 435(b)(1).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc. §§ 436(a) and (b); *Stafford v. Schultz* (1954) 42 Cal.2d 767, 782.)

The grounds for moving to strike must appear on the face of the pleadings or by way of judicial notice. (Code Civ. Proc. § 437.) Accordingly, the Court does not consider any extrinsic evidence, including that contained in affidavits, declarations, or deposition transcripts concurrently filed with the moving or opposing papers. (See *Garcia v. Sterling* (1985) 176 Cal.App.3d 17, 21 (holding that the court cannot consider extrinsic evidence to show that the complaint is false or a sham).)

In ruling on a motion to strike, the allegations in the complaint are considered in context and presumed to be true: “[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Clauson v. Superior Court (Pedus Services, Inc.)* (1998) 67 Cal.App.4th 1253, 1255.)

B.

Meet and

Confer

Before filing a demurrer, the demurring party is required to meet and confer “in person, by telephone, or by video conference” with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached

through a filing of an amended pleading that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc. § 430.41(a).)

As attested to by Defense Counsel Scott Feig (“Feig”), he met and conferred with Plaintiff’s counsel by email but the parties were unable to reach an agreement resolving the claimed deficiencies in the FAC. (Feig Decl. ¶ 3.) Feig attests that Plaintiff’s counsel did not amend or agree to amend the FAC to cure all of the identified defects. (Id.)

The Court finds that Defendants have not satisfied the statutory meet and confer requirement. Code of Civil Procedure § 430.41 requires the parties to meet and confer “in person, by telephone, or by video conference;” an email exchange is insufficient. (See Code Civ. Proc. § 430.41(a).) Although the Court finds the parties’ meet and confer insufficient, such a determination is not grounds to overrule or sustain Defendants’ Demurrer. (Id., § 430.41(a)(4).) Accordingly, the Court proceeds with its analysis but cautions the parties to ensure compliance with the applicable statutory mandates in any further proceedings.

C. Discussion

1. Demurrer

Defendants demur to the First, Second, and Third Causes of Action in Plaintiff’s FAC, alleging each is uncertain and does not state facts sufficient to constitute a cause of action.

i. First Cause of Action for Declaratory Relief

Defendants demur to Plaintiff’s First Cause of Action on the grounds that it is improper because Plaintiff seeks an adjudication of past completed transactions rather than prospective guidance. Plaintiff argues in opposition that his First Cause of Action “alleges an actual, ongoing controversy over present property rights; declaratory relief

operates prospectively to clarify current interests [because] determining the validity of the August 20, 2023, deed resolves the parties' present and future rights to the property, which is paradigmatic prospective declaration." (Opp., p. 3:27-4:2.)

"Any person interested under a written instrument, excluding a will or a trust, or under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property, or with respect to the location of the natural channel of a watercourse, may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract. He or she may ask for a declaration of rights or duties, either alone or with other relief; and the court may make a binding declaration of these rights or duties, whether or not further relief is or could be claimed at the time. The declaration may be either affirmative or negative in form and effect, and the declaration shall have the force of a final judgment." (Civ. Code § 1060.)

To qualify for declaratory relief, a plaintiff must show: (1) a proper subject of declaratory relief; and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party. (Lee v. Silveira (2016) 6 Cal.App.5th 527, 546; see also Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909.) "[T]here is no basis for declaratory relief where only past wrongs are involved." (Osseous Technologies of America, Inc. v. Discovery Ortho Partners LLC (2010) 191 Cal.App.4th 357, 366 (cleaned up); see also Babb v. Superior Court (1971) 3 Cal.3d 841, 848 (Declaratory relief is only available for prospective wrongs that require the Court to intervene in order to prevent future harms from occurring).)

Via his First Cause of Action, Plaintiff seeks "a judicial declaration that: (a) Gibson lacked capacity when the deed was procured and recorded; (b) the deed was procured by undue influence; (c) Gibson did not intend to transfer any interest to Defendants; (d) the deed was without consideration; (e) any "act alone" authority was inapplicable due to incapacity and the Trust's governance under Article 6, Section 4; and (f) Defendants hold no right, title, or interest adverse to the

Trust in the Compton Property.” (FAC, ¶ 41.) Each of these determinations is as to a past occurrence. And each also constitutes a remedy or finding that Plaintiff may obtain via his other enumerated causes of action. The only prospective aspect of Plaintiff's First Cause of Action is that Defendants currently claim right, title and/or interest in the Subject Property and Plaintiff seeks to have the Court declare Defendants have no current or future right, title or interest in the Subject Property. However, that limited prospective aspect is also something that will be addressed via Plaintiff's other causes of action.

The Court finds no prospective aspect of Plaintiff's First Cause of Action requiring a declaration as to any ongoing legal obligations; each of the Plaintiff's enunciated reasons for seeking declaratory relief encompasses a past wrong addressed by Plaintiff's other causes of action. Accordingly, Defendants' Demurrer to Plaintiff's First Cause of Action is SUSTAINED WITH LEAVE TO AMEND.

ii.

Second

Cause of Action for Quiet Title

Defendants demur to Plaintiffs

Second Cause of Action for Quiet Title on the grounds that it fails to plead all of the required elements.

Specifically, Defendants contend that the FAC: (1) fails to allege the mandatory “date as of which the determination is sought;” (2) fails to adequately plead Plaintiff's title and the basis therefor; and (3) improperly attempts to use the quiet title cause of action to litigate underlying tort theories.

(a)

Allegation

of the Date as of which the Quiet Title Determination is Sought

A party claiming quiet title must

include “[t]he date as of which the determination is sought.” (Code Civ. Proc.

§ 761.020(d).) Defendants demur contending that Plaintiff's FAC does not

include the date as to which a determination is sought. Plaintiff opposes, arguing that “the FAC

identifies the August 10, 2023, recording and seeks a present adjudication of

title, thereby providing clear temporal context and notice” and citing to Harbour

Vista, LLC v. HSBC Mortgage Services, Inc. (2011) 201 Cal.App.4th 1496 (“Harbour

Vista”) for the proposition that substantial compliance with quiet title pleading requirements is sufficient. (See Opp., p. 5:5-11.)

While it appears that the date as of which Plaintiff seeks to quiet title might be apparent as being the date of the recording of the deed transferring title to Defendants, Code of Civil Procedure § 761.020 clearly includes in its requirements that Plaintiff plead a date certain. And, having reviewed the 4th District Court of Appeal’s decision in Harbour Vista, the Court does not find Plaintiff’s citation to Harbour Vista substantiates the argument that substantial compliance with Code of Civil Procedure § 761.020(d) is sufficient.

Defendants’ Demurrer to Plaintiffs’

Second Cause of Action on the grounds of failure to comply with Code of Civil Procedure § 761.020(d) is SUSTAINED WITH LEAVE TO AMEND, as the failure to comply is easily rectified.

(b)

Allegations

of Plaintiff’s Title and the Basis Thereof

Defendants contend that the FAC

“fails to adequately allege Plaintiff’s title and the basis for that title with the specificity required for a quiet title claim.” (Mot., p. 7:29-30.) Defendants argue that the FAC does not clearly allege whether Plaintiff’s claim of title is legal or equitable or whether the title is held by the Trust or by the Trustees in their representative capacity. (See id., p. 7:30-34.) The Court does not find Defendants’ arguments here persuasive. Plaintiff alleges that:

(1) The Subject Property has been owned by the Lenora B. Gibson Living Trust (the “Original Trust”) since at least March 7, 2002. (FAC, ¶ 10);

(2) In 2015, the Trust was amended to add Plaintiff as a Trustee and its formal name was changed to “Lenora B. Gibson and Robert Smoots, Trustees, or their successor in trust, under the 1st Amendment and restatement of the Lenora B. Gibson Living Trust, dated March 7, 2002, and any amendments thereto.” (the “Amended Trust”) (Id., ¶¶ 11, 12,

14, Exh. A, p. 1-1);

(3) In the event of Gibson's incapacity, Plaintiff is alleged to have control of all Trust Estate Properties not located in Louisiana. (Id., ¶ 15, Exh. A, Art. 6, § 4; see also Exh. A, Art. 6, § 4a (identifying the Subject Property as part of the Trust estate to be transferred upon Gibson's death); see also FAC, Exh. B (Grant Deed identifying Subject Property as Trust Property).);

(4) Plaintiff was acting as sole Trustee of the Amended Trust beginning in 2022 (Id., ¶ 23);

(5) In August 2023, Gibson transferred the Subject Property to herself and Defendants as joint tenants (Id., ¶¶ 25-28.) The transfer was made not from the name of the Amended Trust (which is alleged to have held title since 2015) but from the Original Trust (which is alleged to have been divested of title in 2015 when the Amended Trust was formed). (Id., Exh. B.)

Plaintiff has adequately alleged that he is Trustee of the Amended Trust, which was the true title holder of the Subject Property. And Plaintiff alleges that Gibson transferred title to Defendants, not only while incapacitated and unable to do so pursuant to the terms of the Amended Trust but also using the name of the Original Trust which no longer held title at the time of the transfer. Plaintiff has adequately alleged his claim of title to the Subject Property and the basis for his title to the Subject Property; the Court finds no ambiguity.

Defendants' Demurrer to Plaintiff's Second Cause of Action on the ground that Plaintiff failed to allege his title or the basis of his title is OVERRULED.

(c)
Underlying
Tort Theories

Defendants allege that "the gravamen of Plaintiff's quiet title claim is not that Plaintiff has independently established superior title, but that the grant deed should be invalidated due

to alleged: incapacity, undue influence, lack of intent, and lack of consideration.” (Mot., p. 8:18-20.) Defendants contend that, because Plaintiff’s Second Cause of Action “does not allege a clear, independently established chain of title establishing that Plaintiff (or the Trust) holds present, superior title” the cause of action fails as a matter of law.

Citing *Paterra v. Hansen*

(2021) 64 Cal.App.5th 507 (“*Paterra*”) and *Hohn v. Riverside County Flood Control & Water Conservation Dist.* (1964) 228 Cal.App.2d 605 (“*Hohn*”), Defendants advance this ground for demurrer via the argument that Plaintiff has not established superior title in himself sufficient to maintain a cause of action, which Defendant contend is a prerequisite for maintenance of a quiet title cause of action. (See *Paterra*, supra, 64 Cal.App.5th at p. 534 (“In a quiet title action, plaintiff must prove her title and that this title is superior to the claims of each party asserting an adverse interest”); *Hohn*, supra, 228 Cal.App.2d at p. 613 (“It is elementary that a plaintiff in an action to quiet title cannot prevail unless he shows title in himself”)(superseded by statute on other grounds as stated in *Robin v. Crowell* (2020) 55 Cal.App.5th 727, 749).) Where there is a disconnect in Defendants’ argument is in the requirements at this procedural stage.

Plaintiff is most certainly required to establish superior title in himself when the time comes to present evidence to properly substantiate his cause of action for quiet title; as the Courts in both *Paterra* and *Hohn* note, Plaintiff ultimately must “show title in himself” or “prove [his] title and that [his] title is superior to [Defendants’ claim].” (See *Ibid.*) But we are not at the trial stage where Plaintiff must prove or otherwise establish his claim to superior title. We are at the pleading stage where Plaintiff is only required to allege his claim to title.

Plaintiff has done that.

As is set forth above, the Court

finds that Plaintiff has indeed set forth allegations sufficient to maintain a cause of action for quiet title. That

Plaintiff’s allegations might also sound in tort is inapposite, especially given that any tort theory of recovery would likely rest with Gibson, who is:

(1) not a party to this action; and (2) alleged to be of unsound mind. Plaintiff has alleged a superior claim to title of the Subject Property; the additional allegations as to incapacity, undue influence, lack of intent and lack of consideration provide context for his quiet title allegations, rather than simply “repackage” an underlying tort theory of recovery.

Defendant's Demurrer on the ground
that Plaintiff's Second Cause of Action fails to state a cause of action
because it is a repackaged tort theory of recovery is OVERRULED.

iii.

Third

Cause of Action for Cancellation of Instrument

The necessary elements to plead a
cause of action for cancellation of instrument are: (1) a written instrument;
(2) a reasonable apprehension that it may cause serious injury to someone; (3)
as to whom it is void or voidable. (Civ.
Code § 3412.)

Defendants contend Plaintiff has
failed to plead that the Grant Deed in question is void or voidable, instead
relying upon conclusory allegations of Gibson's lack of capacity, Defendants'
exertion of undue influence, Gibson's lack of intent and lack of consideration
– each of which Defendants contend is a legal conclusion. Defendants further argue that Plaintiff has
not pleaded facts showing that the Grant Deed was legally invalid at the time
of its execution because there is no allegation that Gibson lacked capacity at
the specific time of execution of the Grant Deed, and has not pleaded specific
facts sufficient to show any "manipulation" by Defendants amounting to undue
influence. And Defendants argue that
Plaintiff fails to adequately allege a reasonable apprehension of serious
injury and Plaintiff's Third Cause of Action is uncertain because it fails to
clearly articulate a legal theory as to why the August 20, 2023 Grant Deed is
void or voidable.

First, the Court notes that the
majority of Defendants' contentions seek far more specificity than is required. A complaint must contain "[a] statement of
the facts constituting the cause of action, in ordinary and concise language."
(Code Civ. Proc. § 425.10(a)(1).) "This fact-pleading requirement obligates the
plaintiff to allege ultimate facts that as a whole apprise the adversary of the
factual basis of the claim. When a complaint complies with the fact-pleading
requirement of section 425.10, subdivision (a)(1), the existence of a legal
right in an abstract form is never alleged by the plaintiff; but, instead thereof,
the facts from which that right arises are set forth, and the right itself is
inferred therefrom. The cause of action, as it appears in the complaint when
properly pleaded, will therefore always be the facts from which the plaintiff's

primary right and the defendant's corresponding primary duty have arisen, together with the facts which constitute the defendant's delict or act of wrong." (Davaloo v. State Farm Ins. Co. (2005) 135 Cal.App.4th 409, 415 (internal citations and quotations omitted, cleaned up).) Here, as is noted above, Plaintiff is only required to allege facts that a written instrument exists and there is a reasonable apprehension that it may cause serious injury to someone as to whom it is void or voidable. (Civ. Code § 3412.)

Plaintiff has clearly set forth the existence of a written instrument forming the basis of his claim: the August 10, 2023 Grant Deed. (FAC, ¶ 26, Exh. B.) And Plaintiff has clearly set forth his reasonable apprehension that the existence of the August 10, 2023 Grant Deed may cause him serious injury given that it vests title to the Subject Property in Defendants and a now-defunct version of the Trust when title was intended to ultimately vest solely in Plaintiff. (See FAC, ¶¶ 15-16, 28-29.) As to whether the August 10, 2023 Grant Deed is void or voidable and Defendants' alleged exertion of undue influence to procure the August 10, 2023 Grant Deed, Plaintiffs selectively read the FAC. Read in its entirety, the FAC alleges that:

(1)

Gibson is 94 years old (FAC, ¶ 7);

(2)

Beginning in 2022, Gibson experienced challenges in managing her finances such that during that same year Plaintiff took full control of Gibson's financial affairs (Id., ¶ 20);

(3)

In March 2023, Gibson was diagnosed with cognitive impairment affecting her ability to process information and impacting her memory, reasoning and decision-making skills (Id., ¶ 21);

(4)

In October 2023, Gibson was further diagnosed with a major neurocognitive disorder, indicating a significant decline in her cognitive abilities, affecting her memory, language skills, and ability to perform daily activities and requiring ongoing medical treatment and support to manage the symptoms and maintain Gibson's quality of life (Id., ¶ 22);

(5)

Plaintiff was acting as sole Trustee of the Trust beginning in 2022 when Gibson began experiencing the aforementioned health challenges (Id., ¶ 23);

(6)

In August 2023, Defendants came to Gibson's home and presented her with a Grant Deed they prepared which transferred a portion of the Subject Property to them (Id., ¶ 25);

(7)

The transfer of a portion of the Subject Property to Defendants is recorded as a "Bonafide gift and [Gibson] received nothing in return" (Id., ¶ 26);

(8)

Because title was taken in joint tenancy, upon Gibson's death title to the Subject Property would pass to Defendants (Id., ¶ 28);

(9)

Gibson does not recall executing the August 10, 2023 Grant Deed and stated it was not her intent to transfer the Subject Property to Defendants (Id., ¶ 29); and

(10)

Gibson states it remains her intent that title the Subject Property pass to Plaintiff upon her death (Id.).

A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616 ("Khoury").) Errors and confusion created by "the inept pleader" are to be forgiven if the pleading contains sufficient facts entitling plaintiff to relief. (Saunders v. Cariss (1990) 224 Cal.App.3d 905, 908.) A demurrer for uncertainty should be overruled if the facts are presumptively within defendant's knowledge. (Khoury, supra, 14 Cal.App.4th at p. 616.) A party attacking a pleading on "uncertainty" grounds must specify how and why the pleading is uncertain, and where that uncertainty can be found

in the challenged pleading. (Fenton v. Groveland Community Services Dept. (1982) 135 Cal. App.3d 797, 809 (disapproved on other grounds in Katzberg v. Regents of the University of California (2002) 29 Cal.4th 300.)

The Court finds no ambiguity in the facts pleaded and no uncertainty in the allegations made. What might be termed a “legal conclusion,” such as Gibson’s incapacity, is either: (1) substantiated by factual pleading (Gibson has been diagnosed with various medical conditions); or (2) something within the knowledge of Defendants which will be substantiated by discovery (Defendants’ acts that may have amounted to an exertion of undue influence). In short, Plaintiff’s Third Cause of Action is appropriately pleaded.

Defendants’ Demurrer to Plaintiff’s Third Cause of Action is OVERRULED.

2.

Motion to Strike

Defendants move to strike Plaintiff’s Prayer, ¶ 4, contending that their motion “is proper to remove claims for damages that are unsupported by factual allegations or legal theories asserted in the FAC.” (Mot., p. 1:35-2:4.) Defendants contend that the damages sought are unavailable as a matter of law because the three asserted causes of action are equitable in nature and the FAC does not allege facts showing any monetary loss, any specific harm giving rise to compensatory damages, or any legal theory pursuant to which damages are recoverable.

In opposition, Plaintiff argues that California court allow damages incidental to equitable relief where appropriate, treat prayers as non-dispositive of the relief that may be granted, and disfavor striking damages at the pleading stage when no prejudice is shown.

Plaintiff’s Prayer, ¶ 4 seeks: “actual, general, special, and/or incidental damages according to proof[.]” (FAC, p. 9:19.) The Court does not find Defendants’ arguments persuasive. An

action in equity allows the Court to determine an equitable remedy, which remedy may include actual, general, special and/or incidental damages. (See ZF Micro Solutions, Inc. v. TAT Capital Partners, Ltd. (2022) 82 Cal.App.5th 992, 1000-1001 (In the course of setting out an equitable remedy, a court of equity can award monetary damages).) The Court finds nothing improper or contrary to California law in a request that the Court award any available remedy, "according to proof."

Defendants Motion to Strike is
DENIED.

III.

CONCLUSION

In all, Defendants' Demurrer is
SUSTAINED IN PART and OVERRULED IN PART.

Where sustained, Defendants' Demurrer is sustained with 30 days' leave to amend. Any amended pleading is ordered to be filed and served no later than September 7, 2026.

Defendants' Motion to Strike is
DENIED.

The Case Management Conference is CONTINUED
to December 3, 2026 at 8:30 a.m. in Dept. E.